TOWN OF WAREHAM

MEMORIAL TOWN HALL
54 MARION ROAD
WAREHAM, MA 02571

CONSERVATION COMMISSION

Minutes April 15, 2026

I. Call to order by the Chair

Roll Call:

Sandy Slavin, Chair
Kwame Bartie, Vice Chair (arrived at 6:02)
Michael Mercier, Clerk
Paulajean O'Neill, Member
Jessica Parr, Member
Dr. Scott Soby, Member

Chair Slavin stated there were three associate positions and one voting member and invited public to volunteer.

Chair Slavin then summarized recent violations, including unauthorized structures and soil dumping at locations on 15th Street and 15 Narrows, and illegal tree cutting on Burgess Point Road. Follow-up actions, including site visits and issuing notices, were planned.

II. CAMP Management Plan 2026

Mike Lenihan, President of Cleanup of Agawam Mill Pond presented the annual update on the pond management plan. The organization has been managing the pond for 12 years, focusing on invasive species control and water quality, coordinating annually with state agencies such as the Division of Marine Fisheries and the Department of Environmental Protection (DEP).
The 2025 season was successful, with chemical treatments approved and carefully dosed at less than 10% of the pond area annually (typically treating 10–15 acres of a 150-acre pond). Herbicides used are EPA and state-approved, applied at half the national recommended dosages, and are widely used in over 250 ponds in Massachusetts. Funding is fully volunteer-driven through community fundraising.

The commission raised concerns about prior requests for data on herbicide breakdown products and their environmental impacts, which the applicant acknowledged were not fully addressed due to consultant changes and cost concerns. They agreed to pursue testing collaboratively in the winter, possibly seeking funding and assistance from DEP.
Further questions included potential use of the herbicide product "Sonar," which was deemed unsuitable for the moving body of water of the pond due to required contact times.
A local resident, Gary Stansky commented positively on the state's prior investment in a boat ramp at the pond, implying confidence in water quality and management efforts.

III. Public Hearings

Request for Determination of Applicability (RDA)

1. **Curtis Perry, 2 Wareham Lake Shores Dr. RDA 137** – applicant is proposing to construct a farmer's porch in buffer zone to a Pond.

Clerk Mercier read the legal notice in for the record.

Motion: Clerk Mercier motioned to open the public hearing. Seconded by Member O'Neill.
Vote: 6-0-0.
Present: Curtis Perry
Mr. Perry reviewed the project to request to remove the roof of existing structure and add a full second floor with a farmer's porch facing the lake. The new construction remains within the footprint except the small porch addition.

Member O'Neill asked about debris and items in the rear of the property that needs to be cleaned out.

Mr. Perry explained that the basement was filled floor to ceiling with junk when he purchased the home and recently cleaned extensive debris (32 tons of steel) from the basement and yard, uncovering sand used for elevation changes. He said they installed straw wattles for erosion control.
Member Dr. Soby expressed concerns over unauthorized sand nourishment and debris located within 30' of the water's edge, which are violations of buffer zone regulations. He said they would have to issue an enforcement as the sand nourishment should not have taken place.

Commission members emphasized that no further unauthorized sand placement or debris storage should occur and the wattles must remain until the lawn is stabilized.
Mr. Perry asked if he could use the sand to spread down on the yard to then loam; Chair Slavin said she was fine if he used it in the yard. Member Dr. Soby said he would recommend no more than two yards.

Ms. Santos had no further questions or concerns.
There was no public comment.
Motion: Member Dr. Soby motioned to close the hearing and was seconded by Member Bartie. **Vote:** 6-0-0.
Ms. Santos recommended a negative three and negative six determination with two $300 fines as discussed; as well as the objects and debris removed from the water side, and the sand to be brought over on the non-beach side of the wattles; and the erosion controls to remain until the lawn is stabilized.
Motion: Member O'Neill moved the recommendation as a motion. Seconded by Member Dr. Soby.
Vote: 6-0-0.

2. **Anne Marie Praino, 17 Elizabeth Ln, RDA 138 –** applicant is proposing to remove a driveway, remove invasive species, and plant native vegetation in Land Subject to Coastal Storm Flowage

Clerk Mercier read the legal notice in for the record.
Motion: Clerk Mercier motioned to open the hearing. Seconded by Member Bartie. Vote: 6-0-0.
Present: Anne Marie and Robert Praino.
Ms. Praino stated they started removal of a deteriorated driveway, and their contractor didn't believe they were supposed to get a permit. They are now present to finish the project and filed this after-the-fact filing. Mr. Praino stated they would be replacing landscaping with native vegetation and constructing a stabilized "ribbon" driveway with sod in areas previously damaged.
He said the work was done primarily by hand, no herbicides were used, keeping close to environmentally sensitive standards.

Commission requested native plants and slow-release nitrogen for fertilization to protect water quality. Erosion controls with straw wattles are to remain until vegetation is established.

Commissioners praised the restoration effort, noting it is rare to see impervious surface removed rather than added.

A $200 fine was imposed for the initial unpermitted removal work per prior commission norms.
There was no public comment.
Motion: Clerk Mercier motioned to close the hearing. Seconded by Member O'Neill. **Vote:** 6-0-0.
Ms. Santos recommendation was a negative three and negative six determination with slow-release nitrogen be used for erosion controls until the grass is established. A fine for $200 for removing and replacing the driveway and just the use of hand methods only for the removal of the invasives.
Motion: Member Bartie moved the recommendation as his motion. Seconded by Member Mercier.
Vote: 6-0-0.

Notice of Intents (NOI)

1. **Andrea Jerabek, 0 Shady Ln – NOI-166** – applicant is proposing to restore tidal connectivity, recreate freshwater wetlands, and allow for a gradual transition to salt marsh in nearly 14 acres of former cranberry bogs by removing agricultural berms, water control structures, and invasive species that block tidal exchange with Marks Cove in and in buffer zone to Bank, Bordering Vegetated Wetlands, Land Under Water Bodies and Waterways, Salt Marsh, Riverfront Area, and Land Subject to Coastal Storm Flowage.

Clerk Mercier read the legal notice for the record.
Motion: Clerk Mercier motioned to open the hearing. Seconded by Member Bartie. **Vote:** 6-0-0.
Present: Andrea Jerabek, Michael Soares, Julian Anne Busa, and Sara Quintal
A presentation covered a large ecological restoration project on retired cranberry farmland aimed at restoring wetlands and facilitating future salt marsh migration due to sea level rise.
The project involves removing agricultural infrastructure such as ditches, berms, and invasive species (Grey willow, phragmites) to allow natural hydrology restoration.
The site covers roughly 15 acres in the Mark's Cove Conservation Area, surrounded by multiple conservation lands within a connected trail system.
Work includes earthmoving to restore microtopography, re-establish tidal creeks, and plug drainage ditches to allow proper water retention.
An emphasis on maintaining public access: several boardwalks and new trails are planned to preserve trail connectivity through restored wetlands despite landscape changes.

Construction logistics include equipment staging on existing farm roads and use of mats to protect wet soil areas.
Anticipated start date for work is late fall to early winter 2026/27, pending permit approvals including Army Corps.
Multiple stakeholders including Mass Audubon, Buzzards Bay Coalition, and local land trusts coordinate these efforts, ensuring alignment on restoration and access goals.

Commissioners expressed overall support and recommended a standard order of conditions with annual reporting to monitor long-term progress.
Motion: Member O'Neill motioned to close the hearing and was seconded by Clerk Mercier.
Vote: 6-0-0.
Ms. Santos' recommendation was the standard restoration order of conditions with annual reporting to monitor long-term progress.
Motion: Member Dr. Soby motioned to grant the project with the standard restoration order of

conditions and an annual report. Seconded by Member Mercier. **Vote:** 6-0-0.

2. **John & Diana Piscitelli, 20 Long Neck Rd – NOI-167** – this is an after the fact filing for work completed in 2010 for an existing concrete driveway, concrete patio, crushed stone driveway and walk, and concrete walk in buffer zone to Bordering Vegetated Wetlands, and Land Subject to Coastal Storm Flowage.

Clerk Mercier read the legal notice for the record.
Motion: Clerk Mercier motioned to open the hearing. Seconded by Member Bartie. **Vote:** 6-0-0.
Present: Bob Rogers, GAF Engineering
Mr. Rogers said the project started as a COC in 2010. He stated it was an after-the fact filing for unpermitted concrete driveway and patio expansions plus crushed stone driveway and walkway; no removal or mitigation proposed, only requesting approval and certification of compliance. Contractor admitted failure to obtain permits at time of work in 2010; heirs now seek retrospective approval and will accept any fines imposed.

Commission questioned the direct runoff from two downspouts running under the driveway to wetlands, which is not standard practice; dry wells are required to intercept roof runoff and pipes must be capped.
The 30-foot no-activity zone provision was clarified as enacted in 2010, after these changes were implemented.
Motion: Clerk Mercier motioned to continue the hearing until May 6, to provide time to submit revised plans for roof drainage improvements. Seconded by Member Bartie. **Vote:** 6-0-0.

2. **George Rodriguez Jr. 3 Marks Cove Rd – NOI 168** – applicant is proposing to remove trees in Land Subject to Coastal Storm Flowage

Clerk Mercier read the legal notice for the record.
Motion: Clerk Mercier motioned to open the public hearing. Seconded by Member Bartie. **Vote:** 6-0-0.
Chair Slavin said she would like to see a lot line as it is adjacent to Wareham Land Trust Holdings.
There was no one present representing the applicant.
Motion: Member Dr. Soby motioned to continue to May 6, 2026 with the site plan showing a lot line. Seconded by Member O'Neill. **Vote:** 6-0-0.

Abbreviated Notice of Resource Area Delination Requests (ANRAD)
Continued Public Hearings:

Request For Determination of Applicability (RDA)

1. **Safe Harbor Marina Onset Bay LLC, 3 Green St – NOI-127** – applicant is proposing to redevelop an existing full-service marina property, including the demolition and replacement with new construction of existing ship building/repair facility and Marine Building, new parking areas, improved stormwater management systems, associated grading, landscaping, and site improvements in Coastal Bank, buffer zone to Coastal Beach and Salt Marsh, and Land Subject to Coastal Storm Flowage. Cont'd 6/3/26

2. **Floyd Andrews, 7 Burgess Point Shores – NOI-135** – applicant is proposing to construct a single family dwelling with a driveway, septic system, and associated grading and utilities in buffer zone to Isolated Vegetated Wetlands with a Potential Vernal Pool, and Land Subject to Coastal Storm Flowage. Cont'd 6/17/26

3. **Town of Wareham, Minot Ave & Narrows Rd – NOI-139** – applicant is proposing to construct a shared use path in, and in buffer zone to Bordering Vegetated Wetlands and Coastal Bank, and in Land Subject to Coastal Storm Flowage. Cont'd 6/17/26

4. **River Hawk, LLC, 19 Bay Pointe Dr – NOI-143** – applicant is proposing to construct stormwater upgrades and restore Bordering Vegetated Wetlands impacted by siltation.

Ms. Santos gave an update of the last communications. Discussion to task her to consult with town counsel regarding enforcement strategy.
Motion: Member Dr. Soby motioned to continue to May 6, 2026. Seconded by Member O'Neill. **Vote:** 6-0-0.

5. **George Mavridis, 17 Atlantic Ave – NOI-160** – applicant is proposing to raze and rebuild an existing single-family house and install an Innovation Alternative Title V septic system, remove and reconstruct retaining walls, install all associated utility connections, grading, landscaping and appurtenances in buffer zone to Salt Marsh and Coastal Bank, Coastal Bank and Land Subject to Coastal Storm Flowage. Cont'd 5/6

Motion: Member O'Neill motioned to continue to May 6, 2026. Seconded by Member Dr. Soby. **Vote:** 6-0-0.

6. **16 Widow's Cove Ln, David and Susan Broderick – NOI-162** – applicant is proposing to reconstruct an existing deck on an easement in Coastal Bank, buffer zone to Coastal Beach, and Land Subject to Coastal Storm Flowage.

Present: Mr. Bill Lockwood, Architect and Susan Broderick
Mr. Lockwood reviewed the past meeting and stated they have cut back on the flat surface to have room to have a code compliant stairway to the beach. He explained the property is owned by someone else and it's a right of way for nine people.
Ms. Broderick explained this is a deeded easement, that includes 20' of deeded beach. She said they are simply repairing what's currently there.
Member Dr. Soby emphasized the approval is solely for wetlands compliance and does not confer any rights or resolve legal issues related to easement or property disputes.

Ms. Santos explained the order of conditions explained their jurisdiction only regarding wetlands compliance, general condition #2, under the MGL Wetland Protection Act.

Via Zoom, Adam Gutbezahl, representing Jeffrey Johnson owner of the easement in question. He said Attorney Michael Rosen was at their previous meeting; and he believed the Commission stated they would have to clear up an enforcement order prior to rendering a decision on this matter.

Ms. Santos explained the enforcement order that was issued in 2023/2024 on 16 Widow's Cove on restoration on Coastal Bank. She discussed the enforcement orders.

Jeffrey Johnson, owner of property at 16 Widow's Cove Lane said he had just received the plans just an hour ago. He said as far as replacing the deck, there are currently two posts, and currently there are six posts in the new deck. He said he feels there is more work being done if in fact it is only a repair.
Mr. Lockwood stated there are eight posts proposed.

Ms. Santos reviewed what she discussed with DEP. They said there shouldn't be two open orders of condition on one project, especially since it is very similar.
Mr. Johnson said he spoke to DEP and stated there was a previous agent and then a current agent that processed Mr. Lockwood's application, thus some confusion.

Mr. Lockwood said he felt they were two entirely separate applications and there was more confusion because Mr. Johnson had two outstanding NOI's.
He said there is confusion because of two outstanding NOI's.

Via Zoom, Mark Lanza, applicant attorney. He clarified that this application is not subject to resolving Mr. Johnson's NOI, there was concerns generally if DEP has a rule or policy on multiple filings on a property; and Attorney Lanza explained it; referring to Wetlands Program Policy, 88-3, multiple filings.
He asked the board to act on it separately from the NOI or any other projects.

Member O'Neill stated they would want to know about potential shellfish habitat impacts, tidal waters and structural materials.
Ms. Santos stated the deck is situated proximate is within mapped shellfish beds.
Mr. Lockwood stated the concrete landing pad will be placed on sand without excavation.
The Commission requested additional detailed design information on structural materials and installation is required.
Motion: Member Mercier motioned to continue to May 6, 2026. Seconded by Member Bartie. Vote: 6-0-0.

Amended Order of Condition Request

1. **72B Burgess Point Rd. – SE 76-2735**

Clerk Mercier read the legal notice for the record.
Motion: Clerk Mercier motioned to open the hearing. Seconded by Member Bartie. Vote: 6-0-0.
Present: Brian Wallace, JC Engineering
Mr. Wallace, stated this was an after-the-fact. Fire pit and gravel driveway were installed and asked for an amended order of conditions for approval for those two items. He said they were taking a few things out, unpaved driveway (kept as gravel for now) and taking out the construction of the detached garage. Still a few things in front of site which are disturbed but want to keep it stabilized. Proposed sod on left side of the house was also asked for.
Chairwoman Slavin asked about all the trees that were planted, that weren't on original plan. Mr. Wallace did confirm that and those plantings were agreed upon between the two property homeowners. There were other concerns on the wall.
Motion: Dr. Soby motioned to close the hearing. Seconded by Member O'Neill. **Vote:** 6-0-0.
Ms. Santos recommended issue of amended order of conditions with a fine for the unpermitted of the gravel driveway, fire pit and trees at $200/each, times three; $600 fines.
Motion: Ms. Parr moved the recommendation as her motion. Seconded by Dr. Soby. **Vote:** 6-0-0.

2. **16 Widow's Cove Ln – SE 75-2819**

Property owner: Jeffrey Johnson was present.
Mr. Johnson proposed a plan as a two-part. He said the first part was amended but lapsed in time to inability of putting the plantings in because of the construction that took place. This was replacing the shrubs on the coastal bank and adding a property barrier. He reviewed what was agreed to regarding plantings. He said he would like to change the fence, instead proposed native plants in its entirety (between his property and 14 Widow's Cove Lane).
Dr. Soby stated they have asked for botanical names of the plants.
Concerns from Commission members shared concern that the engineer plans were dated from 2023 and he would need to submit new plans with a recent date.
Second part of the plan is the enforcement order, not in flood zone and not in buffer area. He said he would like to add more plantings on that side as well.

From the public, Susan Broderick asked about the 6' limit on the fence that was originally on the first plans. She said she has no objection to the plants, but objects to plants that are going to be 10-15 ft. high. She said she brought the same objection.
The Commission said there may be a zoning enforcement limit, it wouldn't go through the commission.

Mr. Johnson said the abutter planted shrubs that were over 10' tall on the property line on their property. The two argued it wasn't that high.

Ms. Broderick said the plants that were planted were permitted and do not extend beyond the house when asked by the Chair.
A continuance needs to occur for the full name of the plants and the removal of the stamps on the plans.
Motion: Member Bartie motioned to continue to May 6, 2026. Seconded by Member Mercier. **Vote:** 6-0-0.

Extension Requests

Certificate of Compliance Requests

a. 12 Harborview Ln – SE 76-2868

Motion: Member O'Neill motioned to continue to May 6, 2026. Seconded by Member Mercier. **Vote:** 6-0-0.

b. 269 Hathaway ST – SE76-2318

Motion: Member O'Neill motioned to issue the COC. Seconded by Member Mercier. Vote: 6-0-0.

c. 269 Hathaway St – SE76-2460

Motion: Member O'Neill motioned to issue the COC. Seconded by Member Mercier. **Vote:** 6-0-0.

Review of Enforcements

Continued Enforcements

d. **21 Pleasant St** – Destruction of Bordering Vegetated Wetlands via clearing with heavy machinery

Report of the Conservation Agent

e. Administrative Approvals
f. Workshop – Permits- Certificates of Compliance (COC)

Consent Agenda

g. **Review and Approve Minutes – 3.4.2026**

Motion: Member Bartie motioned to approve the minutes of March 4, 2026. Seconded by Member Mercier. **Vote:** 6-0-0.

Chair Slavin stated there were minutes from 2025 that weren't approved or posted.

h. Appointments, Interviews and Reappointments
i. Fine Discussion
j. 28 Nelson St - SOC

Brief discussion on this, 28 Nelson Street to continue this discussion at their May 6, 2026 meeting.

Adjournment

Motion: Member O'Neill motioned at 9:35 p.m. Dr. Soby seconded. **Vote:** 6-0-0.

Signing of Documents Approved by the Commission

Michael R. Mercier 7/15/26